

to interfere in areas of state policymaking where Congress has not determined to interfere.

Nor will such interference be negligible. One argument urged in *Screws* in favor of the result which that case reached was the announced policy of self-restraint of the Department of Justice in the prosecution of cases under 18 U. S. C. § 242. See 325 U. S., at 159-160. Experience indicates that private litigants cannot be expected to show the same consideration for the autonomy of local administration which the Department purportedly shows.⁶⁸

Relevant also are the effects upon the institution of federal constitutional adjudication of sustaining under § 1979 damage actions for relief against conduct allegedly violative of federal constitutional rights, but plainly

⁶⁸ In the last twenty years the lower federal courts have encountered a volume of litigation seeking Civil Rights Act redress for a variety of wrongs ranging from arbitrary refusal by housing department officials to issue architect's certificates, *Burt v. New York*, 156 F. 2d 791 (C. A. 2d Cir.), to allegedly malicious charges made by a state grand jury. *Lyons v. Baker*, 180 F. 2d 893 (C. A. 5th Cir.). Plaintiffs have sought redress against the signers of a mandamus petition, parties to a state mandamus proceeding to compel city commissioners to hold a local referendum, *Lyons v. Dehon*, 188 F. 2d 534 (C. A. 5th Cir.), against state officials administering a local WPA project for refusing to employ the plaintiff and instituting insanity proceedings against him, *Love v. Chandler*, 124 F. 2d 785 (C. A. 8th Cir.), against adversaries and judge in a state civil judicial proceeding where egregious error resulting in holding against plaintiffs was alleged, *Bottone v. Lindsley*, 170 F. 2d 705 (C. A. 10th Cir.); *Campo v. Niemeyer*, 182 F. 2d 115 (C. A. 7th Cir.); cf. *Moffett v. Commerce Trust Co.*, 187 F. 2d 242 (C. A. 8th Cir.). Most courts have refused to convert what would otherwise be ordinary state-law claims for false imprisonment or malicious prosecution or assault and battery into civil rights cases on the basis of conclusory allegations of constitutional violation. *Lyons v. Weltmer*, 174 F. 2d 473 (C. A. 4th Cir.); *McGuire v. Todd*, 198 F. 2d 60 (C. A. 5th Cir.); *Curry v. Ragan*, 257 F. 2d 449 (C. A. 5th Cir.); *Deloach v. Rogers*, 268 F. 2d 928 (C. A. 5th Cir.); *Agnew v. City of Compton*, 239 F. 2d 226 (C. A. 9th Cir.).